

3. This Act may be cited as the Unemployment Assistance (Temporary Provisions) Act, 1935, and the Unemployment Assistance Act, 1934, and this Act may be cited together as the Unemployment Assistance Acts, 1934 and 1935. Short title
and con-
struction.

CHAPTER 7.

An Act to make provision for the granting of financial assistance to the owners of ships registered in the United Kingdom in respect of tramp voyages carried out during the year nineteen hundred and thirty-five, and to persons qualified to be owners of British ships in respect of proposals for the improvement of merchant shipping fleets; to provide for the repeal of section eighteen of the Economy (Miscellaneous Provisions) Act, 1926; and for purposes connected with the matters aforesaid.

[26th February 1935.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

PART I.

SUBSIDY IN RESPECT OF TRAMP VOYAGES.

1.—(1) For the purpose of helping the owners of vessels registered at ports in the United Kingdom to compete with foreign shipping in receipt of subsidies from foreign Governments, the Board of Trade may, subject to such directions as may be given by the Treasury, and upon recommendations made by an advisory committee (hereinafter referred to as the "Tramp Shipping Subsidy Committee") appointed for

Payment
of subsidy.

PART I.
—cont.

the purposes of this Part of this Act by the Board with the concurrence of the Treasury, pay to the owners of vessels eligible for subsidy under this Part of this Act subsidies in respect of tramp voyages or parts of tramp voyages carried out by such vessels in the year nineteen hundred and thirty-five:

Provided that no such subsidies shall be paid in respect of any voyage wholly between ports within the United Kingdom, Irish Free State, Isle of Man and Channel Islands.

(2) The vessels eligible for subsidy under this Part of this Act are vessels to which this Act applies, being vessels registered at ports in the United Kingdom, which have been British ships since the first day of January, nineteen hundred and thirty-four or, in the case of vessels completed after that date, since they were completed, so, however, that vessels completed after that date shall not be eligible for subsidy unless they were built in the United Kingdom.

(3) It shall be the duty of the Tramp Shipping Subsidy Committee to advise the Board generally as to the operation of this Part of this Act, and in particular as to the making of payments by way of subsidies under this Part of this Act and the terms and conditions upon which such payments should be made, and in considering any recommendations to be made to the Board of Trade under this Part of this Act the Committee shall have regard to the purpose for which the Board are empowered to grant subsidies under this Part of this Act and shall not recommend payment of a subsidy in respect of any tramp voyage if, in the opinion of the Committee, the voyage was undertaken without due regard to the necessity for co-operation between owners of British vessels in furthering that purpose.

(4) The Board of Trade may appoint secretaries to the Tramp Shipping Subsidy Committee, and the Committee may employ such officers and servants as the Committee may, with the consent of the Board and of the Treasury, determine; and there shall be paid as part of the expenses incurred by or on behalf of the Board of Trade under this Part of this Act to the secretaries and

to any officers and servants so appointed such salaries and allowances as may be determined by the Board with the approval of the Treasury.

PART I.
—cont.

(5) The sums necessary for the payment of subsidies under this section and for the payment of any expenses incurred by or on behalf of the Board of Trade under this Part of this Act shall be defrayed out of moneys provided by Parliament and shall not exceed in the aggregate two million pounds.

PART II.

ASSISTANCE TO SHIPOWNERS PROPOSING TO IMPROVE MERCHANT SHIPPING FLEETS.

2. If the Board of Trade, after consultation with an advisory committee (hereinafter referred to as the "Ships Replacement Committee") appointed for the purposes of this Part of this Act by the Board with the concurrence of the Treasury, are satisfied that the carrying out of any proposals for the demolition and for the building or modernization of vessels submitted to the Board by any person qualified under the Merchant Shipping Act, 1894, to own a British ship will promote the general interests of British shipping, and that the proposals comply with the requirements of this Part of this Act, the Board may approve the proposals and upon any such proposals being so approved the Board may, with the consent of the Treasury, and upon a recommendation made by the Ships Replacement Committee, make an advance to that person for the purpose of enabling him to build or modernize the vessels provided for by the proposals.

Power to
make ad-
vances in
respect of
approved
proposals.

57 & 58 Vict.
c. 60.

3.—(1) No proposals submitted under this Part of this Act shall be approved by the Board of Trade unless the Board are satisfied, in particular, that all vessels to be demolished, built or modernized in pursuance of the proposals are vessels in respect of which assistance may be given under this Part of this Act and that the proposals contain provisions securing—

Require-
ments as to
proposals in
respect of
which
advances
may be
made.

(a) that the demolition of vessels will be in the proportions of two gross tons to be demolished for every gross ton of the vessels to be built

PART II.
—*cont.*

and of one gross ton to be demolished for every gross ton of the vessels to be modernized;

(b) that the vessels to be demolished in pursuance of the proposals:—

(i) will be demolished within the United Kingdom, or with the consent of the Board of Trade outside the United Kingdom in accordance with such conditions as may be imposed by the Board;

(ii) will not, after the date upon which any advance is made under this Part of this Act or such later date as the Board may allow, be used for any trading voyage;

(c) that the vessels to be built or modernized in pursuance of the proposals—

(i) will be built or modernized in Great Britain and registered at a port in the United Kingdom; and

(ii) will, while any part of the principal of, or interest on, any advance made under this Part of this Act remains outstanding, neither be sold without the consent of the Board nor cease to be registered at a port within the United Kingdom.

(2) The vessels in respect of which assistance may be given under this Part of this Act are vessels to which this Act applies (not being vessels constructed or adapted for the carriage of more than twelve passengers) which are, were, or will be, as the case may be, employed in the carriage of commercial cargoes and not employed mainly in voyages between ports within the United Kingdom, Irish Free State, Isle of Man and Channel Islands, or in maintaining regular services between such ports and ports in the Continent of Europe between the River Elbe and Brest inclusive.

Provisions
as to
advances.

4.—(1) The advances made under this Part of this Act shall not exceed in the aggregate ten million pounds, and no such advance shall be made after the expiration of two years from the date of the passing of this Act.

(2) Any advance made under this Part of this Act shall be made upon such terms as may be determined

by the Treasury, and without prejudice to the generality of this provision such terms shall include the following terms, that is to say :—

PART II.
—cont.

- (a) that the advance shall be secured by a first mortgage on any vessels in respect of the building or modernization of which the advance is made;
 - (b) that the rate of interest on any advance made shall not exceed three per cent. per annum;
 - (c) that any advance made shall be repayable within a period not exceeding twelve years.
- (3) Such sums as may from time to time be required for the purposes of making any advances under this Part of this Act shall be charged on and issued out of the Consolidated Fund of the United Kingdom or the growing produce thereof.

(4) For the purpose of providing for the issue of such sums out of the Consolidated Fund or of any part of any such sum so issued, the Treasury may raise money in any manner in which they are authorised to raise money under and for the purpose of subsection (1) of section one of the War Loan Act, 1919, and any securities created and issued to raise money under this subsection shall for all purposes be deemed to have been created and issued under the said subsection (1).

9 & 10 Geo. 5.
c. 37.

(5) All sums received by way of interest on, or in repayment of, advances made under this Part of this Act shall be applied in such manner as the Treasury may direct to the redemption of debt.

(6) The Board of Trade shall, before the first day of October in every year, prepare an account in such form and in such manner as the Treasury may direct of the advances made under this Part of this Act, and the sums received by way of interest on, or in repayment of, such advances during the last preceding financial year and the Comptroller and Auditor General shall examine and certify the account and shall lay copies thereof, together with his report thereon, before both Houses of Parliament.

5. This Part of this Act shall come into operation upon such date as may be appointed by order of the Board of Trade with the consent of the Treasury.

Commence-
ment of
Part II.

PART III.

MISCELLANEOUS.

Supple-
mentary
provisions.

6.—(1) The vessels to which this Act applies are all ships which are neither fishing vessels nor constructed or adapted for the carriage of liquid cargoes in bulk, nor so constructed or adapted that the space insulated for the carriage of special cargoes is in excess either of fifty thousand cubic feet or of ten per cent. of the total space available for cargo.

(2) In this Act the expression “tramp voyage” means a voyage in the course of which all the cargo carried is carried under charter party, but does not include any voyage during any part of which more than twelve passengers are carried.

(3) If, in connection with the operation of this Act, any question arises—

(a) whether a vessel is a vessel to which this Act applies; or

(b) whether a vessel is eligible for subsidy under Part I of this Act; or

(c) whether any voyage was a tramp voyage, or as to the extent of any such voyage, or whether any such voyage or part of such a voyage was carried out in the year nineteen hundred and thirty-five, or was a voyage wholly between ports within the United Kingdom, Irish Free State, Isle of Man, and Channel Islands; or

(d) whether any vessel is a vessel in respect of which assistance may be given under Part II of this Act,

the question shall be decided by the Board of Trade after consultation with the appropriate advisory committee, and the decision of the Board shall be final.

(4) Anything required or authorised by or under this Act to be done by, to, or before the Board of Trade may be done by, to, or before the President or any Secretary, Under Secretary or Assistant Secretary of the Board or any person authorised in that behalf by the President of the Board.

7. Section eighteen of the Economy (Miscellaneous Provisions) Act, 1926 (which gives directions to the Board of Trade as to fixing the amount of the fees to be charged under the Merchant Shipping Acts, 1894 to 1923) is hereby repealed.

PART III.
—cont.

Repeal of
16 & 17
Geo. 5. c. 9.
s. 18.

8. This Act may be cited as the British Shipping (Assistance) Act, 1935.

Short title.

CHAPTER 8.

An Act to consolidate the Unemployment Insurance Acts, 1920 to 1934, and certain other enactments relating to those Acts.

[26th February 1935.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

PART I.

INSURED PERSONS.

1. Subject to the provisions of this Act, all persons of either sex, whether British subjects or not, being persons who have attained the minimum age for entry into insurance under this Act and are employed in insurable employment, shall be insured against unemployment in manner provided by this Act.

Persons to
be insured
against un-
employ-
ment.

2. The minimum age for entry into insurance under this Act shall be the age (not being less than fourteen years) when a person attains the age at which, under the law for the time being in force, his parents cease to be under an obligation to cause him to attend school, or, in Scotland, to receive efficient education, unless there is some reasonable excuse.

Minimum
age for
entry into
insurance.

3.—(1) For the purposes of this Act every employment specified in Part I of the First Schedule to this Act

Insurable
employ-
ment.